

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of January 1, 2026, by and between Acme Corporation ("Provider") and the client identified on the signature page ("Client").

1. Definitions. "Services" means the consulting and software development services described in each Statement of Work. "Deliverables" means any work product delivered to Client under this Agreement.
2. Services. Provider shall perform the Services in a professional and workmanlike manner consistent with industry standards.
3. Fees and Payment. Client shall pay Provider the fees set forth in the applicable Statement of Work. All invoices are due within thirty (30) days of receipt.
4. Term. This Agreement shall commence on the Effective Date and continue for one (1) year, automatically renewing for successive one-year terms unless either party gives sixty (60) days notice.
5. Confidentiality. Each party shall hold the other party's Confidential Information in strict confidence and shall not disclose it to any third party without prior written consent.
6. Intellectual Property. Upon full payment, Provider assigns to Client all right, title, and interest in the Deliverables, excluding Provider's pre-existing materials.
7. Warranties. Provider warrants that the Services will conform to the specifications for a period of ninety (90) days following delivery.
8. Limitation of Liability. In no event shall either party's aggregate liability exceed the total fees paid by Client in the twelve (12) months preceding the claim.
9. Indemnification. Provider shall indemnify and hold harmless Client from any third-party claims arising out of Provider's gross negligence or willful misconduct.
10. Termination. Either party may terminate this Agreement for material breach if such breach remains uncured thirty (30) days after written notice.
11. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware.
12. Entire Agreement. This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations, representations, or agreements.